

CVC AND CBI

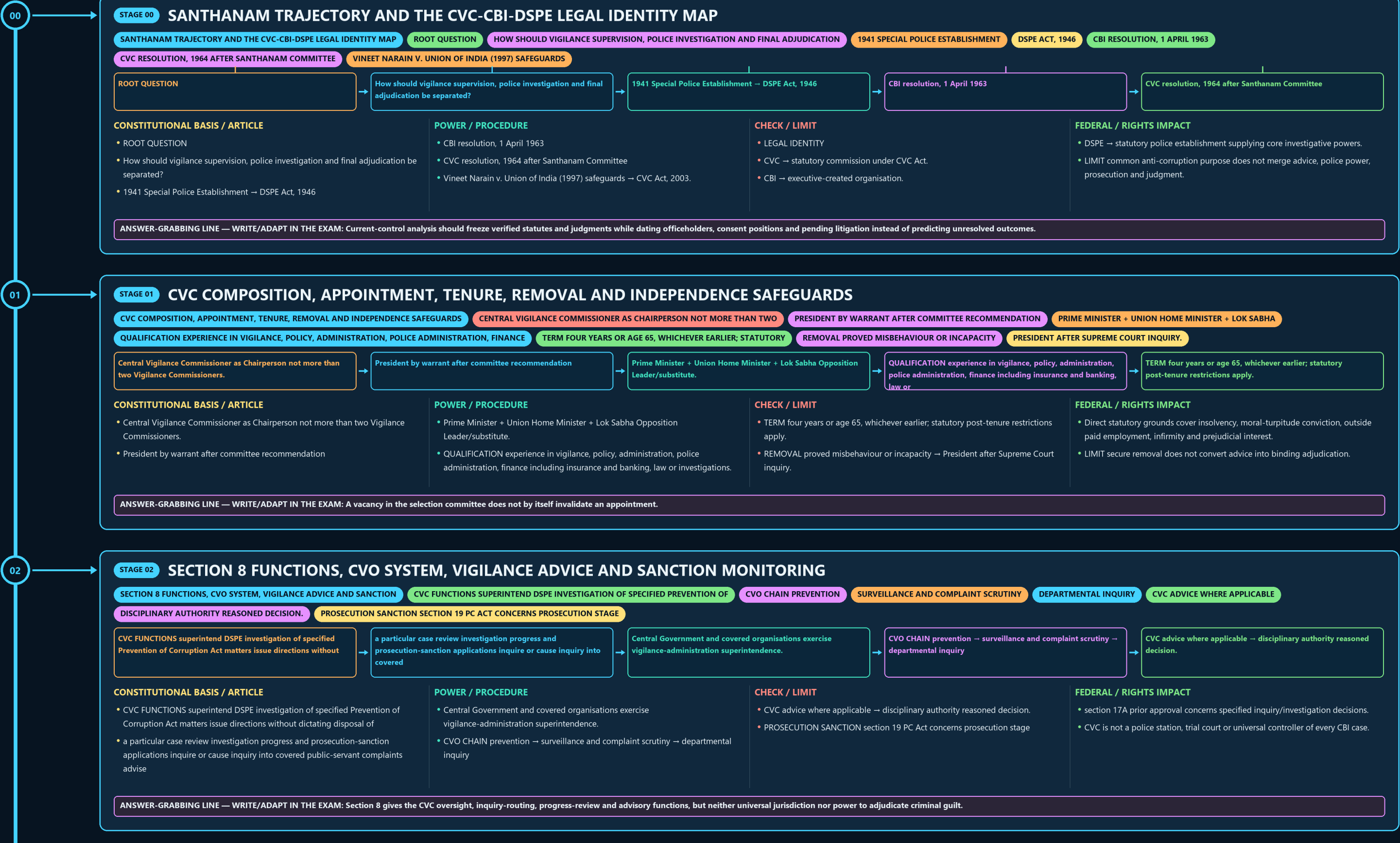
SANTHANAM TRAJECTORY AND THE → CVC COMPOSITION, APPOINTMENT, TENURE → SECTION 8 FUNCTIONS, CVO → CBI ORGANISATION, DSPE POWERS → SUPERINTENDENCE SPLIT AND THE → STATE CONSENT, PENDING INVESTIGATIONS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02 SECTION 8 FUNCTIONS, CVO SYSTEM, VIGILANCE ADVICE AND SANCTION MONITORING

SECTION 8 FUNCTIONS, CVO SYSTEM, VIGILANCE ADVICE AND SANCTION

CVC FUNCTIONS SUPERINTEND DSPE INVESTIGATION OF SPECIFIED PREVENTION OF

CVO CHAIN PREVENTION

SURVEILLANCE AND COMPLAINT SCRUTINY

DEPARTMENTAL INQUIRY

CVC ADVICE WHERE APPLICABLE

DISCIPLINARY AUTHORITY REASONED DECISION.

PROSECUTION SANCTION SECTION 19 PC ACT CONCERNS PROSECUTION STAGE

CVC FUNCTIONS superintend DSPE investigation of specified Prevention of Corruption Act matters issue directions without dictating disposal of

a particular case review investigation progress and prosecution-sanction applications inquire or cause inquiry into covered

Central Government and covered organisations exercise vigilance-administration superintendence.

CVO CHAIN prevention → surveillance and complaint scrutiny → departmental inquiry

CVC advice where applicable → disciplinary authority reasoned decision.

CONSTITUTIONAL BASIS / ARTICLE

- CVC FUNCTIONS superintend DSPE investigation of specified Prevention of Corruption Act matters issue directions without dictating disposal of
- a particular case review investigation progress and prosecution-sanction applications inquire or cause inquiry into covered public-servant complaints advise

POWER / PROCEDURE

- Central Government and covered organisations exercise vigilance-administration superintendence.
- CVO CHAIN prevention → surveillance and complaint scrutiny → departmental inquiry

CHECK / LIMIT

- CVC advice where applicable → disciplinary authority reasoned decision.
- PROSECUTION SANCTION section 19 PC Act concerns prosecution stage

FEDERAL / RIGHTS IMPACT

- section 17A prior approval concerns specified inquiry/investigation decisions.
- CVC is not a police station, trial court or universal controller of every CBI case.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 8 gives the CVC oversight, inquiry-routing, progress-review and advisory functions, but neither universal jurisdiction nor power to adjudicate criminal guilt.

03

STAGE 03 CBI ORGANISATION, DSPE POWERS, NOTIFIED OFFENCES AND MANDATE BOUNDARIES

CBI ORGANISATION, DSPE POWERS, NOTIFIED OFFENCES AND MANDATE BOUNDARIES

CBI ORGANISATION INVESTIGATION AND ANTI-CORRUPTION

ECONOMIC OFFENCES

SPECIAL CRIMES POLICY, ADMINISTRATION, FORENSICS AND INTERNATIONAL COOPERATION.

DSPE ACT SECTION 2

UNION TERRITORY POLICE-ESTABLISHMENT BASELINE.

SECTION 3

CENTRAL NOTIFICATION SPECIFIES OFFENCE CLASSES.

CBI ORGANISATION investigation and anti-corruption

economic offences

special crimes policy, administration, forensics and international cooperation.

DSPE ACT section 2 — Union Territory police-establishment baseline.

CONSTITUTIONAL BASIS / ARTICLE

- CBI ORGANISATION investigation and anti-corruption
- economic offences
- special crimes policy, administration, forensics and international cooperation.

POWER / PROCEDURE

- DSPE ACT section 2 — Union Territory police-establishment baseline.
- section 3 — Central notification specifies offence classes.
- section 5 — Central extension of powers to State areas.

CHECK / LIMIT

- section 6 — State consent for ordinary exercise in State area.
- POLICE POWER
- FIR or regular case → search, seizure, arrest and examination under law

FEDERAL / RIGHTS IMPACT

- evidence assessment → closure report or charge sheet → court.
- BOUNDARY organisational mandate does not override notified offences, territory, criminal procedure, special statutes, consent or court directions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: "CBI can investigate any case in India" and "CBI can never act without State consent" are both overbroad.

04

STAGE 04 SUPERINTENDENCE SPLIT AND THE CBI DIRECTOR APPOINTMENT-TENURE ARCHITECTURE

SUPERINTENDENCE SPLIT AND THE CBI DIRECTOR APPOINTMENT-TENURE ARCHITECTURE

CVC FOR DSPE INVESTIGATION OF SPECIFIED CORRUPTION OFFENCES.

CENTRAL GOVERNMENT FOR OTHER DSPE MATTERS.

DIRECTOR CONTROLS DAY-TO-DAY ADMINISTRATION AND INVESTIGATIVE JUDGMENT, SUBJECT TO

DIRECTOR APPOINTMENT

CENTRAL GOVERNMENT APPOINTS ON COMMITTEE RECOMMENDATION

PRIME MINISTER + LOK SABHA OPPOSITION LEADER/SUBSTITUTE + CJI

TENURE MINIMUM TWO YEARS UNDER DSPE ACT.

CVC for DSPE investigation of specified corruption offences.

Central Government for other DSPE matters.

Director controls day-to-day administration and investigative judgment, subject to statute, law and lawful oversight.

DIRECTOR APPOINTMENT

Central Government appoints on committee recommendation

CONSTITUTIONAL BASIS / ARTICLE

- CVC for DSPE investigation of specified corruption offences.
- Central Government for other DSPE matters.
- Director controls day-to-day administration and investigative judgment, subject to statute, law and lawful oversight.

POWER / PROCEDURE

- DIRECTOR APPOINTMENT
- Central Government appoints on committee recommendation
- Prime Minister + Lok Sabha Opposition Leader/substitute + CJI or nominee.

CHECK / LIMIT

- TENURE minimum two years under DSPE Act.
- Current law permits conditional one-year extensions, with recorded public-interest reasons, up to aggregate five years.
- TRANSFER statutory committee safeguard applies.

FEDERAL / RIGHTS IMPACT

- TRAP two-year floor != automatic five-year term and superintendence != case-outcome command.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 4(2) vests superintendence over other matters in the Central Government, subject to other statutory provisions.

05

STAGE 05 STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

ORDINARY STATE-AREA ROUTE SECTION 5 EXTENSION + SECTION 6

WITHDRAWAL OF GENERAL CONSENT OPERATES PROSPECTIVELY FOR NEW ORDINARY

KAZI LHENDUP DORJI V. CBI (1994) LATER WITHDRAWAL DID

STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF

HIGH COURT UNDER ARTICLE 226 AND SUPREME COURT UNDER

FERTICO MARKETING AND INVESTMENT PVT. LTD. V. CBI (2020)

STATE OF WEST BENGAL V. UNION OF INDIA (2024)

ORDINARY STATE-AREA ROUTE section 5 extension + section 6 general or case-specific State consent.

CVC for DSPE investigation of specified corruption offences.

Central Government for other DSPE matters.

Director controls day-to-day administration and investigative judgment, subject to statute, law and lawful oversight.

DIRECTOR APPOINTMENT

Central Government appoints on committee recommendation

CONSTITUTIONAL BASIS / ARTICLE

- CVC for DSPE investigation of specified corruption offences.
- Central Government for other DSPE matters.
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POWER / PROCEDURE

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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Section 4(2) vests superintendence over other matters in the Central Government, subject to other statutory provisions.

05

STAGE 05

STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONSORDINARY STATE-AREA ROUTE SECTION 5 EXTENSION + SECTION 6WITHDRAWAL OF GENERAL CONSENT OPERATES PROSPECTIVELY FOR NEW ORDINARYKAZI LHENDUP DORJI V. CBI (1994) LATER WITHDRAWAL DID

STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OFHIGH COURT UNDER ARTICLE 226 AND SUPREME COURT UNDERFERTICO MARKETING AND INVESTMENT PVT. LTD. V. CBI (2020)STATE OF WEST BENGAL V. UNION OF INDIA (2024)

ORDINARY STATE-AREA ROUTE section 5 extension + section 6 general or case-specific State consent.

Withdrawal of general consent operates prospectively for new ordinary entries.

Kazi Lhendup Dorji v. CBI (1994) later withdrawal did not terminate investigations validly begun while

State of West Bengal v. Committee for Protection of Democratic Rights (2010)

CONSTITUTIONAL BASIS / ARTICLE

- ORDINARY STATE-AREA ROUTE section 5 extension + section 6 general or case-specific State consent.
- Withdrawal of general consent operates prospectively for new ordinary entries.

POWER / PROCEDURE

- Kazi Lhendup Dorji v. CBI (1994) later withdrawal did not terminate investigations validly begun while consent operated.
- State of West Bengal v. Committee for Protection of Democratic Rights (2010)

CHECK / LIMIT

- High Court under Article 226 and Supreme Court under Article 32 may direct CBI investigation without State consent, exceptionally and cautiously.
- Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) fact-specific consent result; no universal rule that later consent always cures defect.

FEDERAL / RIGHTS IMPACT

- State of West Bengal v. Union of India (2024) preliminary maintainability objection rejected; cited judgment did not decide consent merits.
- FEDERAL VERDICT qualified State control in ordinary cases + exceptional rights-protecting judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The holding does not create a free-standing power to start any later investigation without consent.

06

STAGE 06

LOKPAL INTERFACE, INVESTIGATION LIFECYCLE AND PROCEDURAL SAFEGUARDS

LOKPAL INTERFACE, INVESTIGATION LIFECYCLE AND PROCEDURAL SAFEGUARDSLOKPAL ROUTE COMPLAINT SCRUTINYPRELIMINARY INQUIRY OR INVESTIGATION UNDER LOKPAL ACTCVC/CBI OR STATUTORY WINGS AS ASSIGNEDREPORTS AND DIRECTIONS WITHIN THE ACT.

INVESTIGATION LIFECYCLE SOURCE INFORMATION/COMPLAINTJURISDICTION AND APPROVAL SCREENPRELIMINARY VERIFICATION WHERE LAW PERMITS

LOKPAL ROUTE complaint scrutiny → preliminary inquiry or investigation under Lokpal Act

CVC/CBI or statutory wings as assigned → reports and directions within the Act.

INVESTIGATION LIFECYCLE source information/complaint → jurisdiction and approval screen

preliminary verification where law permits → FIR/regular case

evidence collection → sanction question → final police report

CONSTITUTIONAL BASIS / ARTICLE

- LOKPAL ROUTE complaint scrutiny → preliminary inquiry or investigation under Lokpal Act
- CVC/CBI or statutory wings as assigned → reports and directions within the Act.
- INVESTIGATION LIFECYCLE source information/complaint → jurisdiction and approval screen
- preliminary verification where law permits → FIR/regular case

POWER / PROCEDURE

- evidence collection → sanction question → final police report
- prosecution → trial → judgment.
- CBI v. Thommandru Hannah Vijayalakshmi (2021) preliminary inquiry is not mandatory before every corruption FIR
- criminal-procedure and corruption-law requirements control.

CHECK / LIMIT

- SAFEGUARDS lawful approval
- search and arrest standards disclosure and fair trial
- judicial review
- presumption of innocence.

FEDERAL / RIGHTS IMPACT

- FIR, charge sheet, vigilance advice and sanction are not findings of guilt.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PC Act section 17A governs previous approval for enquiry, inquiry or investigation into specified allegations relatable to a public servant's recommendation or decision in discharge of official functions, subject to its statutory exceptions.

07

STAGE 07

CVC, CBI, LOKPAL, NIA AND STATE POLICE: POWER-TYPE COMPARISON

CVC, CBI, LOKPAL, NIA AND STATE POLICEPOWER-TYPE COMPARISONCVC STATUTORY VIGILANCE SUPERVISION AND ADVICENO GENERAL POLICE POWER.DSPE EXECUTIVE ORGANISATION + STATUTORY POLICE POWERSCONSENT AND OFFENCE CONTROLS.

LOKPAL STATUTORY OMBUDSMAN AND COMPLAINT-ROUTING AUTHORITY FOR COVERED PUBLICNIA STATUTORY NATIONAL-SECURITY INVESTIGATION UNDER NIA ACT AND SCHEDULED-OFFENCE

CVC statutory vigilance supervision and advice

no general police power.

CBI / DSPE executive organisation + statutory police powers

consent and offence controls.

CONSTITUTIONAL BASIS / ARTICLE

- CVC statutory vigilance supervision and advice
- no general police power.
- CBI / DSPE executive organisation + statutory police powers

POWER / PROCEDURE

- consent and offence controls.
- LOKPAL statutory ombudsman and complaint-routing authority for covered public functionaries.

CHECK / LIMIT

- STATE POLICE / ACB
- State police power and territorial responsibility under ordinary criminal law.
- DEPARTMENTAL CVO internal prevention, scrutiny and disciplinary-vigilance

FEDERAL / RIGHTS IMPACT

- COURT authorises, reviews, tries and finally determines guilt.
- TRAP administrative placement, vigilance supervision and police command are different relationships.

- CVC/CBI or statutory wings as assigned → reports and directions within the Act.
- INVESTIGATION LIFECYCLE source information/complaint → jurisdiction and approval screen
- preliminary verification where law permits → FIR/regular case

- CBI v. Thommandru Hannah Vijayalakshmi (2021) preliminary inquiry is not mandatory before every corruption FIR
- criminal-procedure and corruption-law requirements control.

- judicial review
- presumption of innocence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PC Act section 17A governs previous approval for enquiry, inquiry or investigation into specified allegations relating to a public servant’s recommendation or decision in discharge of official functions, subject to its statutory exceptions.

07

STAGE 07 CVC, CBI, LOKPAL, NIA AND STATE POLICE: POWER-TYPE COMPARISON

CVC, CBI, LOKPAL, NIA AND STATE POLICE

POWER-TYPE COMPARISON

CVC STATUTORY VIGILANCE SUPERVISION AND ADVICE

NO GENERAL POLICE POWER.

DSPE EXECUTIVE ORGANISATION + STATUTORY POLICE POWERS

CONSENT AND OFFENCE CONTROLS.

LOKPAL STATUTORY OMBUDSMAN AND COMPLAINT-ROUTING AUTHORITY FOR COVERED PUBLIC

NIA STATUTORY NATIONAL-SECURITY INVESTIGATION UNDER NIA ACT AND SCHEDULED-OFFENCE

CVC statutory vigilance supervision and advice		no general police power.	
CBI / DSPE executive organisation + statutory police powers		consent and offence controls.	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- CVC statutory vigilance supervision and advice - no general police power. - CBI / DSPE executive organisation + statutory police powers	- consent and offence controls. - LOKPAL statutory ombudsman and complaint-routing authority for covered public functionaries. - NIA statutory national-security investigation under NIA Act and scheduled-offence framework.	- STATE POLICE / ACB - State police power and territorial responsibility under ordinary criminal law. - DEPARTMENTAL CVO internal prevention, scrutiny and disciplinary-vigilance coordination.	- COURT authorises, reviews, tries and finally determines guilt. - TRAP administrative placement, vigilance supervision and police command are different relationships.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CVC, CBI, Lokpal, ED, NIA and State agencies occupy different vigilance, corruption, financial-crime and security fields, so institutional overlap does not erase jurisdictional boundaries.

08

STAGE 08 CONTROLLING CASES, CAGED-PARROT CRITICISM, REFORM AND ANSWER SYNTHESIS

CONTROLLING CASES, CAGED-PARROT CRITICISM, REFORM AND ANSWER SYNTHESIS

VINEET NARAIN V. UNION OF INDIA (1997) INSTITUTIONAL SAFEGUARDS

ALOK KUMAR VERMA V. UNION OF INDIA (2019) STATUTORY

DR JAYA THAKUR V. UNION OF INDIA (2023) CURRENT

"CAGED PARROT" JUDICIAL CRITICISM OF PERCEIVED EXECUTIVE INFLUENCE IN

NOT A STATUTORY STATUS, DOCTRINE OR LICENCE FOR JUDICIAL

REFORM DEDICATED LAW WITH FEDERAL SAFEGUARDS + PREDICTABLE CONSENT

PROFESSIONAL CADRE AND BUDGET

Vineet Narain v. Union of India (1997) institutional safeguards, Director tenure and statutory CVC trajectory.

Alok Kumar Verma v. Union of India (2019) statutory committee safeguard constrained removal of Director’s

Dr Jaya Thakur v. Union of India (2023) current extension framework upheld; extension remains conditional

"CAGED PARROT" judicial criticism of perceived executive influence in 2013

not a statutory status, doctrine or licence for judicial administration of every case.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- Vineet Narain v. Union of India (1997) institutional safeguards, Director tenure and statutory CVC trajectory. - Alok Kumar Verma v. Union of India (2019) statutory committee safeguard constrained removal of Director’s functions. - Dr Jaya Thakur v. Union of India (2023) current extension framework upheld; extension remains conditional, not automatic.	"CAGED PARROT" judicial criticism of perceived executive influence in 2013 - not a statutory status, doctrine or licence for judicial administration of every case. - REFORM dedicated law with federal safeguards + predictable consent protocol	- professional cadre and budget → transparent case allocation - timely sanctions → parliamentary system review + judicial accountability. - PYQ SPINE	2021 State consent and federalism 2026 controlled institutional matching. - VERDICT operational autonomy must be paired with legality, federal restraint and answerable coercive power.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CBI autonomy depends less on a slogan of independence than on a rule-bound Director architecture that separates high-level selection, secure minimum tenure, lawful extension and day-to-day administration.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — CENTRAL VIGILANCE COMMISSION (CVC)

PART B — CENTRAL BUREAU OF INVESTIGATION (CBI)

ESTABLISHED 1964 BY AN EXECUTIVE RESOLUTION , ON THE

ORIGINALLY NEITHER CONSTITUTIONAL NOR STATUTORY

GIVEN STATUTORY STATUS BY THE CVC ACT, 2003

SUPERINTENDENCE OVER THE CBI (DSPE) ONLY FOR PREVENTION OF

INQUIRE INTO CORRUPTION COMPLAINTS VS AIS + GROUP-A CENTRAL

OPTIONAL DOCTRINE / CASE	ADVANCED LIMIT	COMPARATIVE NUANCE
- PART A — CENTRAL VIGILANCE COMMISSION (CVC) - PART B — CENTRAL BUREAU OF INVESTIGATION (CBI) - Established 1964 by an executive resolution , on the recommendation of the Santhanam Committee on - Originally neither constitutional nor statutory → given statutory status by the CVC Act, 2003	- Superintendence over the CBI (DSPE) only for Prevention of Corruption Act, 1988 offences (NOT all CBI work). - Inquire into corruption complaints vs AIS + Group-A central officers. - Whistle-blower authority under PIDPI Resolution (2004) & the Whistle Blowers Protection Act, 2014 . - Chairs the committee recommending the ED Director & (post-Lokpal Act 2013) CBI officers SP-and-above (except Director) .	- Civil-court powers ; annual report → President → Parliament . CAUTION: Advisory — advice not binding (govt must record reasons if it disagrees). - Set up 1963 by a Home Ministry resolution ; recommended by the Santhanam Committee . - NOT a statutory body — derives powers from the Delhi Special Police Establishment (DSPE) Act, 1946 . - Main investigating agency of the Centre; assists the CVC & Lokpal .

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.